

Chapter 100 Utility and Transportation

100.5 Regulations Applying to the Utility and Transportation Zone Category

100.5.1 General

100.5.1.10 Interpretation

(1) Application of this Section

The regulations in Section 100.5 apply to all lands, uses, **buildings** and **structures** in the Utility and Transportation Zone category.

(2) Interpretation of the Utility and Transportation Zone Symbol

The zone symbol on the Zoning By-law Map for zones in the Utility and Transportation Zones category consists of the letters UT, indicating the primary land use permitted in the zone.

100.5.75 Energy Regulations

100.5.75.1 General

(1) Renewable Energy or Cogeneration Energy Device - Location Restriction

In the Utility and Transportation Zone category, a device producing **renewable energy** or **cogeneration energy** may be no closer to a **lot line** than the greater of:

- (A) 10 metres;
- (B) the required minimum **building setbacks** for a **building** on the **lot**; or
- (C) a distance equal to the height of the device, measured between **average grade** at its base to the elevation of the highest part of the device.

(2) Renewable Energy Device - Height Requirements

In the Utility and Transportation Zone category, a photovoltaic **solar energy** device or a thermal **solar energy** device that is:

- (A) on a **building**:
 - (i) must comply with the minimum **building setbacks** for a **building** on the **lot**; and
 - (ii) no part of the device may be higher than 3.0 metres above the permitted maximum height for the **building**; and
- (B) ground mounted, no part of the device may be more than 5.0 metres above **average grade** at the base of the device.

(3) Wind Energy Device - Building Setbacks

In the Utility and Transportation Zone category, no part of a **wind energy** device may be closer to a **lot line** than the greater of:

- (A) the required minimum **building setbacks** for a **building** on the **lot**; or
- (B) a distance equal to two times the height of the device, measured between **average grade** at its base to the elevation of the highest part of the device.

(4) Wind Energy Device - Height

In the Utility and Transportation Zone category, no part of a **wind energy** device may be more than 15.0 metres above **average grade** at the base of the device.

(5) Geo-energy Requirements

In the Utility and Transportation Zone category, any above-ground part of a **geo-energy** device:

- (A) must be set back at least 10.0 metres from any **lot line**; and

(B) must comply with the requirements for a **building** or **structure**, other than a required minimum **building setback** which is less than the requirement in (A) above.

(6) Cogeneration Device

In the Utility and Transportation Zone category, a **cogeneration energy** device that is closer than 30 metres from a **lot** in the Residential Zone category or the Residential Apartment Zone category must be inside a permitted **building**.

100.5.80 Parking

100.5.80.1 General

(1) Use of Required Parking Space

A **parking space** required by this By-law for a use in the Utility and Transportation Zone category must be available for the use for which it is required.

100.5.80.10 Location

(1) Location of Required Parking Spaces

A **parking space** must be on the same **lot** as the use for which the **parking space** is required.

100.10 Utility and Transportation Zone (UT)

100.10.1 General

100.10.1.5 Interpretation

(1) Application of this Section

The regulations in Section 100.10 apply to all lands, **buildings** and **structures** in the UT zone.

100.10.20 Permitted Uses

100.10.20.10 Permitted Use

(1) Use - UT Zone

The following uses are permitted in the UT zone:

Ambulance Depot

Market Garden

Fire Hall

Park

Police Station

Public Utility

Transportation Use

100.10.20.20 Permitted Use - with Conditions

(1) Use with Conditions - UT Zone

The following uses are permitted in the UT zone, if they comply with the specific conditions associated with the reference number(s) for each use in Clause 100.10.20.100:

Cogeneration Energy (1)

Open Storage (2)

Public Parking (3)

Public Works Yard (4)

Recreation Use (5)

Renewable Energy (1)

Vehicle Depot (6)

100.10.20.100 Conditions

(1) Cogeneration Energy Production or Renewable Energy Production

In the UT zone, **cogeneration energy** production or **renewable energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(2) Open Storage

In the UT zone, **open storage** for a **public utility** or **transportation use** must be at least 100 metres from a **lot** in the Residential Zone category, the Residential Apartment Zone category or the Commercial Residential Employment Zone category, or a **lot** in a CR zone where the "r" value in the zone label is greater than 0.0.

(3) Public Parking

Public parking in the UT zone must be in association with:

(A) a **transportation use** that is provided by, or on behalf of the City of Toronto, Province of Ontario or Government of Canada; or

(B) a **park**.

(4) Public Works Yard

In the UT zone, a **public works yard** must be at least 100 metres from a **lot** in the Residential Zone category, the Residential Apartment Zone category or the Commercial Residential Employment Zone category, or a **lot** in a CR zone where the "r" value in the zone label is greater than 0.0.

(5) Recreation Use

In the UT zone, a **recreation use** must not be in a **building**.

(6) Vehicle Depot

In the UT zone, a **vehicle depot** must be:

- (A) in association with a **public utility** or a **transportation use**; and
- (B) at least 100 metres from a **lot** in the Residential Zone category, the Residential Apartment Zone category or the Commercial Residential Employment Zone category, or a **lot** in a CR zone where the "r" value in the zone label is greater than 0.0.

100.10.40 Principal Building Requirements

100.10.40.80 Separation

(1) Separation of Buildings or Structures for the Treatment of Sewage from Specified Zones

In the UT zone, a **building** or **structure** used for the treatment of sewage must be at least 100 metres from a **lot** in the Residential Zone category, the Residential Apartment Zone category or the Commercial Residential Employment Zone category, or a **lot** in a CR zone where the "r" value in the zone label is greater than 0.0.

100.10.40.81 Separation Exemptions

(1) Permitted Separation from Other Zones for Lawfully Existing Buildings or Structures

In the UT zone, if the **lawful** separation distance between a **lawfully existing building** or **structure** and a **lot** is less than the required minimum separation distance, that **lawful** separation distance is the minimum separation distance between that **lawfully existing building** or **structure** and that **lot**.

(2) Additions to Lawfully Existing Buildings or Structures - Separation from Other Zones

Any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 100.10.40.81(1) must comply with the required minimum separation distance from a **lot** or be authorized by a Section 45 Planning Act minor variance.

100.10.80 Parking

100.10.80.20 Setbacks

(1) Parking Space to be Set Back from a Lot Line

A **parking space** that is not in a **building** or **structure** must be at least 0.5 metres from a **lot line**.